THE
AREA BOARD OF ZONING APPEALS
OF TIPPECANOE COUNTY

NOTICE OF PUBLIC HEARING

DATE ..... MAY 27, 2026
TIME ..... 6:00 P.M.
PLACE ..... COUNTY OFFICE BUILDING
20 NORTH 3RD STREET
LAFAYETTE, IN 47901

A G E N D A

Links to watch the livestream can be found on the APC website at:
https://www.youtube.com/c/TippecanoeCountyGovernment

I. APPROVAL OF MINUTES

II. NEW BUSINESS

III. PUBLIC HEARING

1. **BZA-2225 OMEGA CHAPTER OF PI KAPPA PHI**

Petitioner and owner, represented by Ryan Munden of RTS Law, requests the following variances for construction of a new fraternity house:

1. To increase the building height from the maximum allowed 40' to 72'5" (UZO 2-11-11);
2. To increase the building coverage from the maximum allowed 40% to 70% (UZO 2-11-7);
3. To reduce the vegetative coverage from the minimum required 30% to 9.7% (UZO 2-11-7).
4. To reduce the total parking spaces from the minimum required 41 spaces to 27 spaces (UZO 4-6-3);
5. To reduce the front (west) setback from the minimum required 10' (averaged) to 3'6" (UZO 4-4-1);
6. To reduce the rear (east) setback from the required 25' to 20'10" (UZO 2-11-9).

The R3W-zoned property includes Lots 6, 7 and 8 of Roberts Addn, commonly known as 330 N Grant Street, West Lafayette, Wabash 19 (NE) 23-4. *Continued from April 22nd ABZA meeting at petitioner's request (first continuance).*

Vote Results

Variance #1
5-Yes and 0-No
Variance #2
4-Yes and 1-No
Variance #3
5-Yes and 0-No
Variance #4
5-Yes and 0-No
Variance #5
5-Yes and 0-No
Variance #6
5-Yes and 0-No

Tippecanoe County does not discriminate on the basis of race, color, national origin, religion, sex, age, marital status, disability, or veteran status. If you need a reasonable accommodation, including auxiliary aids or language assistance to participate in a public meeting or access a County service, please contact the Tippecanoe County ADA/Title VI Coordinator at (765) 423-9215 or by email: accessibility@tippecanoe.in.gov at least 48–72 hours before the event. Forms and additional details are available on our website: Tippecanoe County ADA & Title VI Compliance

2. **BZA-2229 LAWRENCE HITZE**

Continued to June 24, 2026 ABZA hearing at petitioner's request

Petitioner and owner requests a variance to reduce a rear (east) setback along Old US 231 S from the minimum required 60' to 16' to construct a shed (UZO 2-3-7). The R1B-zoned property is Lot 80 of Part I of Stratford Glen Subdivision, commonly known as 4713 Cardiff Court, Wea 18 (SE) 22-4.

Continued

3. **BZA-2230 ROBERT DARNELL**

Vote Results
Variance #1
5-Yes and 0-No
Variance #2
5-Yes and 0-No

Petitioner and owner, represented by Casey Mast of Mast Services of Lafayette, LLC, requests the following two variances to allow construction of an attached front porch:

1. To allow a reduction in the front setback from the required 25' to 23' (UZO 2-1-7); and
2. To allow a side setback (east side) of 2' instead of the required 6' to legitimize the existing house (the proposed porch side setback would be 5.19') (UZO 2-1-9).

The R1-zoned property is Lot 34 of Lakeroad subdivision, Part 2, commonly known as 3717 N. Connie Drive, Fairfield 02 (NW) 23-4.

IV. ADMINISTRATIVE MATTERS
Planning Pointer: Navigating Easements & Rights-Of-Way

V. ADJOURNMENT

Per Indiana State Statute, the membership of the Area Board of Zoning Appeals must be included on all agendas starting July 2025. State Code allows each participating jurisdiction to determine the length of an appointee's initial term. Upon re-appointment following the end of their initial term, an appointee then serves a four-year term. The ABZA membership is as follows:

President Steve Clevenger, Tippecanoe County appointment, 1/26 thru 12/29 (President thru 12/26)
Vice President Robert Novak, City of Lafayette appointment, 3/26 thru 12/29 (Vice President thru 3/27)
Tim VanderPlaats, Tippecanoe County appointment, 1/26 thru 12/29
Ed Butz, City of Lafayette appointment,1/26 thru 12/29
Brad Hallberg, APC appointment,1/26 thru 12/29
Gary Schroeder, APC appointment, 1/26 thru 12/29
Jennifer Page, City of West Lafayette appointment, 3/26 thru 3/12/27 (3-year term per Mayor)

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AREA BOARD OF ZONING APPEALS OF TIPPECANOE COUNTY
MINUTES OF A PUBLIC HEARING

DATE .....April 22, 2026
TIME..... 6:00 P.M.
PLACE.....COUNTY OFFICE BUILDING
20 N. 3RD STREET
LAFAYETTE, IN 47901

This meeting was held in-person.

MEMBERS PRESENT			MEMBERS ABSENT	STAFF PRESENT
Ed Butz	Robert Novak	Tim VanderPlaats		Ryan O'Gara
Steve Clevenger	Jennifer Page			Nathan McBurnett
Brad Hallberg	Gary Schroeder			Eric Burns, Attorney

The Area Board of Zoning Appeals of Tippecanoe County public hearing was held in-person on the 22nd day of April 2026 at 6:00 P.M., pursuant to notice given and agenda posted as provided by law.

Steve Clevenger called the meeting to order. Attorney Eric Burns conducted roll call.

I. APPROVAL OF MINUTES

Robert Novak moved to approve the minutes from the March 25, 2026 ABZA public hearing as submitted. Ed Butz seconded. Clarification was added to reflect that Jennifer Page's appointment was in March, but her first meeting was in April. The minutes were approved by a unanimous voice vote.

II. NEW BUSINESS

Ryan O'Gara, APC staff, stated that **BZA-2228 CHAPTER OF PI KAPPA** PHI had been continued to the May 27, 2026 BZA hearing and **BZA-2228** was ready to be heard.

III. PUBLIC HEARING

Robert Novak moved that there be incorporated into the public hearing portion of each application to be heard and to become part of the evidence, the Unified Zoning Ordinance, the Unified Subdivision Ordinance, the Comprehensive Plan, the By-laws of the Area Board of Zoning Appeals, the application, and all documents filed therewith, the staff report and recommendation on the applications to be heard, and responses from the checkpoint agencies. Ed Butz seconded, and motion carried by unanimous voice vote.

Robert Novak moved to continue **BZA-2225 CHAPTER OF PI KAPPA PHI** to the May 27th ABZA public hearing agenda. Ed Butz seconded, and the motion carried by unanimous voice vote.

Steve Clevenger stated that **BZA-2226 JASON MORROW** and **BZA-2227 JASON MORROW/ PRINTWORKS 3D LLC** have been withdrawn and will not be heard.

Steve Clevenger read the meeting procedures.

Robert Novak moved to hear and vote on **BZA-2228 AMY POHLOD**.

BZA-2228 AMY POHLOD
Petitioner, on behalf of owner J. Brian Mann and represented by Jolly Thulaseedas of KP&J Architects and Engineers, requests a variance to reduce the minimum parking from the required 53 to 48 spaces for construction of a Tropical Smoothie Café.

The GB-zoned property (with existing commitments) is Lot 13 of Sagamore Commons Subdivision, addressed 3020 Sachem Court South, West Lafayette, Wabash 1 (SW) 23-5.

Nathan McBurnett, APC staff, stated that the petitioner had originally requested 48 parking spaces, but had since submitted two updated site plans. A site plan submitted on April 20th brought the request up to 50 parking spaces and another update received before the meeting started brought that request up to 52 spaces. He referred to the staff report that had been written based on the original 48 parking spaces. The request passed all tests except for the hardship test due to it being the choice of the petitioner to provide three commercial suites. Based on the original submission staff had recommended denial.

Steve Clevenger called for the petitioner or the petitioner's representative to make a presentation.

Amy Pohlod, 1360 Edgewood, Birmingham, MI,, was in the process of buying the property and was able to work with her engineers to increase the parking spaces. Based on her others stores, 55% of customers were drive-thru, 2% dine-in, 10% walk-in, and 33% third-party pickup. Because her food service used the drive-thru so heavily, the parking amount would be sufficient.

Steve Clevenger asked if anyone wished to speak in favor or in opposition of the petition. There were none.

Steve Clevenger asked if the Board had any questions or comments.

Tim VanderPlaats asked if the other commercial spaces had prospects yet.

Gary Schroeder asked if the petitioner was confident they didn't need the additional parking space.

Amy Pohlod, 1360 Edgewood, Birmingham, MI,, had received interest from another quick service restaurant and two eye doctors, one of which would want both commercial spaces. She confirmed one less parking space wasn't significant for what they needed.

Steve Clevenger voiced that he was glad the parking request had been able to be changed to require just a single space instead of the previous 5 spaces. Parking variances stay with the property and can affect the next property owner.

Robert Novak asked about the reasoning behind staff's recommendation of denial over a single parking space.

Nathan McBurnett stated that the recommendation was based on the original staff report and variance request, which was for 5 spaces.

Chad Spitznagle, West Lafayette Housing Director, reported no issues with the variance request, especially if an eye doctor had an office in the commercial space.

Jennifer Page asked why eye doctors require fewer parking spaces.

Chad Spitznagle, West Lafayette Housing Director, referenced the use table in the *Unified Zoning Ordinance (UZO)* that calculated parking for restaurants based on square footage and parking for eye doctors on staff. Eye doctors have a less restrictive parking ratio.

Ed motioned to amend the variance request to reduce the minimum parking from the required 53 to 52 spaces. Gary Schroeder seconded the motion.

Jennifer Page asked how a variance could be requested on a property that hadn't been purchased yet by the petitioner.

Ryan O'Gara clarified that the current owner had to agree to the petition, which was the case here. Variances are binding on the property no matter who the owner is, as is the site plan that accompanies the variance.

The motion carried by unanimous voice vote.

Steve Clevenger called for a ballot vote.

Attorney Eric Burns collected the ballots. The Board voted 7-Yes to 0-No, approving the variance to reduce the minimum parking requirements.

Yes-Vote			**No-Vote**
Ed Butz	Robert Novak	Tim VanderPlaats	
Steve Clevenger	Jennifer Page		
Brad Hallberg	Gary Schroeder		

IV. ADMINISTRATIVE MATTERS

1. Planning Pointers: All About A. O.'s

Nathan McBurnett presented the planning pointer:

"Staff frequently throw around the term AO during our presentations or in response to questions, so this pointer gives you a little more background on who these people are and what they have authority over.

Administrative Officers, or A.O.'s are ordinance-designated persons within each member jurisdiction with the responsibility for enforcing the ordinance within that jurisdiction. For both cities, the UZO calls out the City Engineer as the AO. In West Lafayette, Chad Spitznagle is the AO and in Lafayette, Jeromy Grenard. For unincorporated Tippecanoe County, the County Building Commissioner, and the County Zoning Enforcement Officer is the designated AO. Bill Robinette is the Building Commissioner and has designated Ryan O'Gara for zoning enforcement. The APC Executive Director, Ryan O'Gara, is also the designated AO for the three towns of Battle Ground, Clarks Hill and Dayton.

The ordinance gives the AO discretionary decision making on numerous issues, like site plan conformity for permits, bufferyard approvals and fencing. Other times the AO may be called upon to render a decision is during PD negotiations, home occupations not listed in the UZO chapter 5, many of the special conditions listed in UZO Chapter 4-11, and certain parking regulations.

Because the AO is responsible for enforcing the UZO, monthly meetings are held with APC staff and the A.O.'s. Discussions range from new and upcoming planning issues to how the current development standards are serving our communities. Any time an issue is brought up at Ordinance Committee, or by an elected official directly to APC staff, that issue is first brought to the monthly AO meeting. It's where APC staff can get an idea of whether all the jurisdictions may have an interest in whatever that issue is and allows the AO to take that issue and any relevant questions or suggestions back to their elected officials. Some issues take many months to hammer out the best option for our "unified" zoning ordinance. Other times, the AO already knows the issue is front and center for them and gives APC staff the green light for whatever has been proposed to address it.

AO's are one of the first positions in the county to know about BZA cases going before the board. They must sign a document stating that a special exception is required for a specific use in that specific zoning district. They are also provided with a copy of the determination letter, once any cases are decided by the BZA. Cases, as you well know, are tied to their respective site plans. The AO is the one who will be checking that site plan when a petitioner comes to them for a permit to ensure that it is the same one the BZA voted for. Some BZA approvals have conditions or commitments tied to them, which means there are extra precautions necessary to check before the AO may grant a permit. APC staff works closely with the petitioner and the AO to ensure this process works smoothly.

The AO's in the county make many decisions. Not everyone is going to be pleased with those decisions, so the UZO allows a person to file an appeal in response to a decision of the AO. These must be filed within 15 days of the decision date, and those appeals are then heard by the BZA. Only

one appeal has been filed in the last five years, and that was withdrawn after the parties came to a successful agreement."

Steve Clevenger stated unless any member has an objection, the chair will order the findings of each member casting a vote for the majority decision of the Board to be the collective findings of the Board in support of the decision of the Board. Hearing none, it was so ordered.

V. ADJOURNMENT

Robert Novak moved to adjourn. The meeting adjourned at 6:29 PM.

Respectfully submitted,
Danielle Bistline
Recording Secretary

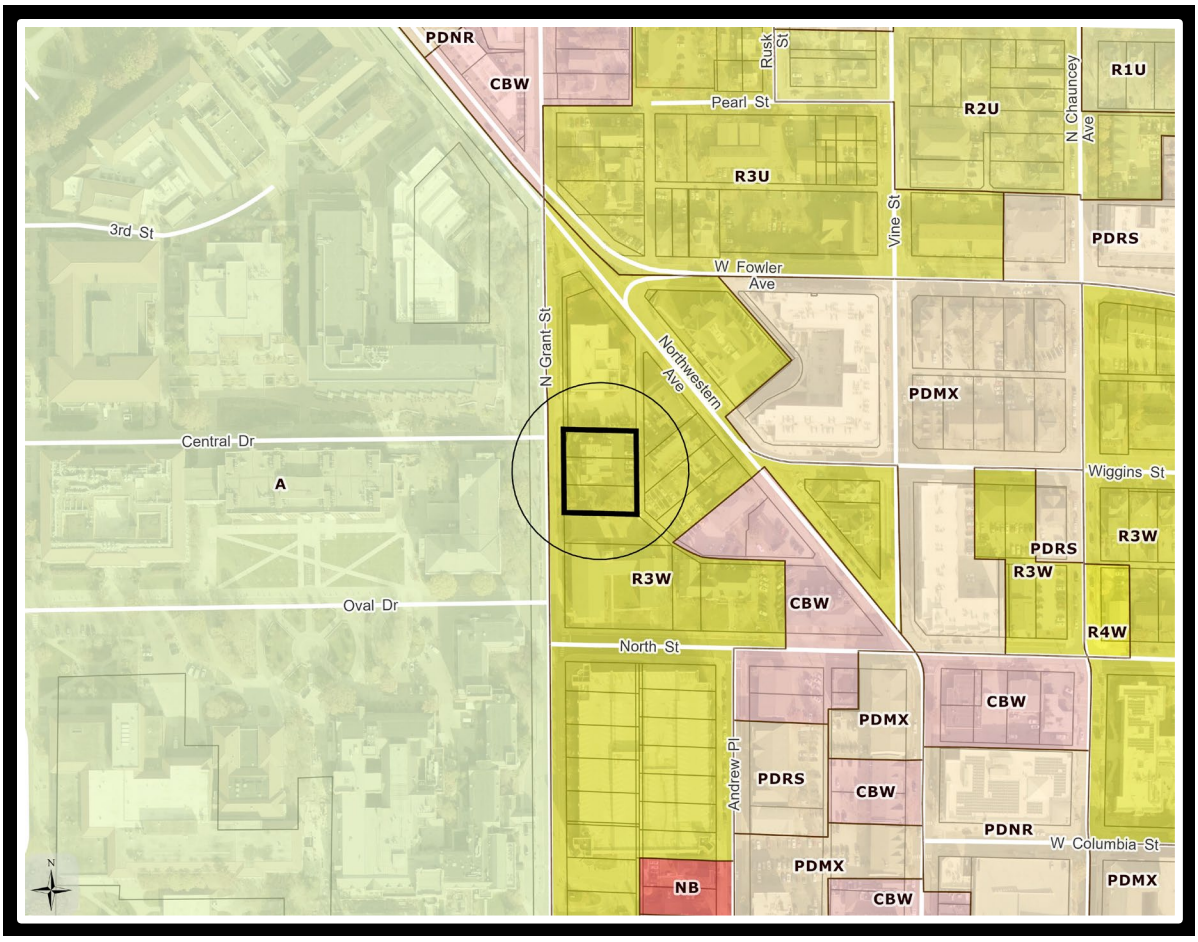
Reviewed by,

Ryan P. O'Gara

Ryan O'Gara
Executive Director

BZA-2225
OMEGA CHAPTER OF PI KAPPA PHI
(variances)

STAFF REPORT
May 21, 2026



BZA-2225
OMEGA CHAPTER OF PI KAPPA PHI
Six Variances

Staff Report
May 21, 2026

REQUEST MADE, PROPOSED USE, LOCATION:

Petitioner, who is the owner and represented by attorney Ryan Munden of RTS Law, is requesting the following six variances:

1. A building height of 72' 5" instead of the maximum permitted height of 40 feet;
2. A building coverage of 70.4% instead of the maximum allowed 40%;
3. A vegetative cover of 9.7% instead of the minimum required 30%;
4. A parking variance to allow 27 spaces instead of the minimum required 41 spaces;
5. A front setback (from Grant Street) of 3'6" instead of the minimum 10-foot setback achieved by averaging in that block face; and
6. A rear setback of 20'10" instead of the required 25'.

Petitioner plans to tear down the existing fraternity and construct a new building at its current site, 330 North Grant Street, West Lafayette, Wabash 19 (NE) 23-4.

AREA ZONING PATTERNS:

The subject site is zoned R3W, as is land to the north and south (which is owned by Purdue and not subject to local zoning). Purdue's campus across Grant Street is zoned A, Agricultural and also not subject to local zoning. To the east across the alley is a student co-op and a fraternity, which are both zoned R3W.

AREA LAND USE PATTERNS:

The site is home to the Omega Chapter of Pi Kappa Phi house, which was built for the fraternity in 1928 in a tudor style. North of the site is Bailey Hall, home of Purdue Music Organizations (PMO) and to the south is Purdue-owned University Church. Shoemaker Co-op and Delta Sigma Phi fraternity are located east across the alley.

TRAFFIC AND TRANSPORTATION:

The site is located along Grant Street, which is classified as an urban primary arterial. Access to the property is derived from the alley along the rear property line.

The parking standard for fraternities is one parking space per 0.75 occupants at capacity. With 54 occupants, 41 paved parking spaces are required.

ENVIRONMENTAL AND UTILITY CONSIDERATIONS:

Sanitary sewer and water serve the site.

STAFF COMMENTS:
The site in question has been home to the fraternity since it was built in 1928. The current structure, built in a tudor-inspired style, while not included in the Tippecanoe County Interim Report (the green book), has historical significance in staff's opinion. The proposed building has some architectural elements similar to the existing historic structure, but at a much larger scale and with more modern materials for the façade. The existing occupancy limit of the house is 68 persons and the new fraternity is slated to house 54 persons. Some of the reasons cited for needing a new replacement building are HV/AC upgrades (much of the building is currently not air conditioned), insufficient number of bathroom facilities and noncompliance with ADA regulations.

Six variances have been filed that would allow the building to be taller than permitted (72.5' instead of 40'), have an increased lot coverage, reduced vegetative coverage, fewer parking spaces, and reduced setbacks along Grant Street and the rear property line. The current structure occupies a relatively small footprint centered between the front and rear property lines and the new building will be shifted towards Grant Street and stretch the width of the lot. The new design allows for a portion of the parking lot to be covered by the upper floors.

West Lafayette City Council recently approved UZO Amendment #124, which changed the height regulations from 14' measured from the uppermost finished floor, to the more easily understood 40' measured from the ground to the peak of the roof. The proposed building, at 72'5" would be well over the height standard West Lafayette just approved. An increase in allowable lot coverage (by buildings) and its opposite, a decrease in the required greenspace, result from a lot area that is too small for petitioner's needs. Likewise for the two building setback requests. If the proposed fraternity were planning to increase the number of occupants, staff would understand the need for such a large building on this small site. In fact, staff supports higher density residential buildings closer to campus. But in this case, the proposed building would be housing fewer students than the current building.

A reduction in required parking at this site, well within walking distance from the majority of campus, is supportable.

Regarding the ballot items:

1. The Area Plan Commission at its April 15, 2026 meeting determined that the variances requested **ARE NOT** use variances.

And it is staff's opinion that:

2. Granting these six variances **WILL NOT** be injurious to the public health, safety, and general welfare of the community. A much larger fraternity with a smaller number of occupants instead of an existing smaller fraternity building with more residents would not be injurious to public health and safety.

3. Use and value of the area adjacent to the property included in the variance request

WILL NOT be affected in a substantially adverse manner. The proposed new building will be ADA compliant and is adjacent to several Purdue buildings or Purdue-related structures. The proposal would not be detrimental to adjacent properties' use and value.

Regarding variance requests 1, 2, 3, 5, and 6:

4. The terms of the zoning ordinance are being applied to a situation that **IS** common to other properties in the same zoning district. Regarding all variances except the reduction in parking, there is nothing unusual about this lot regarding its shape, size or topography other than it is too small for the building proposed.

5. Strict application of the terms of the zoning ordinance **WILL NOT** result in an unusual or unnecessary hardship as defined in the zoning ordinance. A smaller building accommodating the same number of occupants could be constructed here without variances.

   Note: Questions 5a. and 5b. need only be answered if a hardship is found in Question 5 above.

   5a. The hardship involved **IS** self-imposed or solely based on a perceived reduction of or restriction on economic gain. There is no hardship and these requests are solely self-imposed; despite the building's larger size, the occupancy will be reduced, indicating to staff that the requested size is not needed for the property to be used as permitted.

   5b. The variance sought **DOES NOT** provide only the minimum relief needed to alleviate the hardship because there is no hardship present.

Regarding variance request 4 (parking reduction):

4. The terms of the zoning ordinance are being applied to a situation that **IS NOT** common to other properties in the same zoning district. This situation is different because of its proximity to the Purdue campus. Because the site is within walking distance of campus, a fewer number of parking spaces is needed.

5. Strict application of the terms of the zoning ordinance **WILL** result in an unusual or unnecessary hardship as defined in the zoning ordinance. Holding a fraternity this close to campus to the same standard as an apartment building or fraternity much farther away results in a hardship.

   Note: Questions 5a. and 5b. need only be answered if a hardship is found in Question 5 above.

   5a. The hardship involved **IS NOT** self-imposed or solely based on a perceived reduction of or restriction on economic gain. The hardship is not self-imposed because the ordinance doesn't recognize that proximity to campus reduces the need for parking.

5b. The variance sought **DOES** provide only the minimum relief needed to alleviate the hardship. The proposal would still provide one space per two occupants.

STAFF RECOMMENDATION:
Variance #1: Denial
Variance #2: Denial
Variance #3: Denial
Variance #4: Approval
Variance #5: Denial
Variance #6: Denial

Form **21V**

The Area Board of Zoning Appeals of Tippecanoe County, Indiana

Findings of Fact for Variances

20 N. 3rd St.
Lafayette, IN 47901
(765) 423-9242
apc@tippecanoe.in.gov

BZA - 2225

PETITIONER

Name: *Omega Chapter of Pi Kappa Phi*

FINDINGS

WHEN considering a variance request, the Area Board of Zoning Appeals (ABZA) uses the following criteria to approve, conditionally approve, or deny a variance, and the petitioner must address each one of them. (This form may be completed separately for each requested variance if necessary.) A variance may be approved by the ABZA only upon a determination that all of the following are true:

1. The granting of this variance will not be injurious to the public health, safety, morals, and general welfare of the community because:

   Building Height: The new structure will be built to current building and fire codes. Local fire departments can now service taller buildings. The new structure will be safer for residents and will offer improved accessibility.

   Building Coverage: The new structure will meet current building and fire codes. The building will be safer for residents. It will offer improved accessibility and emergency egress options.

2. The use and value of the area adjacent to the property included in the variance request will not be affected in a substantially adverse manner because:

   Building Height: Parking lots separate the fraternity from the adjacent structures on the north and south sides. The increase of one story in height will not be obtrusive because there is adequate open space on all sides of the building.

   Building Coverage: Parking lots separate the fraternity from the adjacent structures on the north and south sides. The required 6' side setbacks are met. The building will provide integrated parking.

3. The terms of the Unified Zoning Ordinance are being applied to a situation that is not common to other properties in the same zoning district. My (our) situation is unique because:

   Building Height: A fraternity house must accommodate a full kitchen with dining hall, study spaces, chapter meeting rooms, and lounging space in addition to bedrooms for its members. Comparing this living arrangement to that of an apartment building within the same zoning district is what makes this situation unique.

   Building Coverage: A fraternity house must accommodate a full kitchen with dining hall, study spaces, chapter meeting rooms, and lounging space in addition to bedrooms for its members. Comparing this type of full-service housing to an apartment building within the same zoning district makes this situation unique. Apartments are not required to provide dining halls, meeting rooms, or lounge areas for their tenants.

Form **21V**

The Area Board of Zoning Appeals of Tippecanoe County, Indiana

Findings of Fact for Variances

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BZA - 2225

PETITIONER

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FINDINGS

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1. The granting of this variance will not be injurious to the public health, safety, morals, and general welfare of the community because:

   Vegetative Coverage: Reducing vegetative coverage in a dense urban area across the street from campus matches the surrounding development patterns of 4-Up and Hi-Vine one block away on Vine Street.

   Parking Spaces: The site plan allows for an upgrade to the parking facilities and will comply with ADA requirements for a fraternity.

2. The use and value of the area adjacent to the property included in the variance request will not be affected in a substantially adverse manner because:

   Vegetative Coverage: The streetscape and curb appeal will be complimentary to the adjacent structures.

   Parking Spaces: The site plan illustrates an increase in parking spaces from what is currently provided. The use of surrounding properties will not be negatively impacted.

3. The terms of the Unified Zoning Ordinance are being applied to a situation that is not common to other properties in the same zoning district. My (our) situation is unique because:

   Vegetative Coverage: Much of the redevelopment near campus is done through the planned development process with negotiated development standards. It is the preference of the City that this redevelopment be pursued as a by-right project with variances. The proposed reduction in vegetative coverage aligns with nearby development patterns found on Vine Street.

   Parking Spaces: The student housing unit is across the street from campus. The proximity to campus results in a lower necessity for parking. The reduced parking standards are typical of many planned developments built nearby.

Form **21V**

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Findings of Fact for Variances

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BZA -

PETITIONER

Name: *Omega Chapter of Pi Kappa Phi*

FINDINGS

WHEN considering a variance request, the Area Board of Zoning Appeals (ABZA) uses the following criteria to approve, conditionally approve, or deny a variance, and the petitioner must address each one of them. (This form may be completed separately for each requested variance if necessary.) A variance may be approved by the ABZA only upon a determination that all of the following are true:

1. The granting of this variance will not be injurious to the public health, safety, morals, and general welfare of the community because:

   Front setback: The placement of the building will not affect the use of the existing sidewalk, and no curb cut will be created along Grant Street.

   Rear setback: The rear of the building is along an alley. No obstructions will be created to hinder public access to this area.

2. The use and value of the area adjacent to the property included in the variance request will not be affected in a substantially adverse manner because:

   Front setback: The proposed fraternity entrance would be complimentary to the adjacent property, Bailey Hall, which was designed to have a landscaped retaining wall and staircase with ramped entry.

   Rear setback: Parking spaces along the alley will be in the same location as they currently exist. The second, third and fourth stories of the proposed building will serve as a covered parking area for the second and third rows of parking. The proposed building will not change the use of the alley.

3. The terms of the Unified Zoning Ordinance are being applied to a situation that is not common to other properties in the same zoning district. My (our) situation is unique because:

   Front setback: Much of the redevelopment near campus is done through the planned development process with negotiated development standards. It is the preference of the City that this redevelopment be pursued through a by-right project with variances. The proposed building placement aligns with the nearby developments of 4-Up and Hi-Vine one block over on Vine Street.

   Rear setback: It is the preference of the City that this redevelopment be pursued as a by-right project with variances. The proposed building placement aligns with the nearby developments of 4-Up and Hi-Vine one block over on Vine Street.

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4. The strict application of the terms of the Unified Zoning Ordinance will result in an unusual and unnecessary hardship as defined in the Unified Zoning Ordinance because:

   Building Height: The hardship is the lot size of approximately 0.44 acres. There are Purdue-owned structures to the north and south of the subject site, therefore the size of this lot will not increase. To make the necessary improvements to the infrastructure of the building, while modernizing the amenities, the height of the structure must increase.

   Building Coverage: There are established uses on both sides of the property, therefore the size of the lot cannot increase. To make the necessary improvements to the infrastructure of the building, while modernizing amenity spaces, the size of the structure must increase. The hardship is the lot size of approximately 0.44 acres and the inability to obtain nearby parcels for additional land.

5. The hardship involved is not self-imposed or based solely on a perceived reduction of or restriction on economic gain because:

   Building Height: The size of the lot cannot change to accommodate a larger building; therefore, this is not a self-imposed hardship. College living arrangements have changed since this structure was first built. The proposed building will see a decrease in the number of beds as compared to the current structure while allowing the creation of desired amenity spaces. The changes to the proposed building layout will decrease the occupancy of the fraternity.
   Building Coverage: The size of the lot cannot change to accommodate a larger building; therefore, it is not a self-imposed hardship. College living arrangements have changed since this structure was first built in the early 1900's. The proposed building will see a decrease in the number of beds compared to the current structure. Changes to the building layout will ultimately decrease the number of residents housed in the fraternity.

6. The variance sought does provide only the minimum relief needed to alleviate the petitioner's hardship because:

   Building Height: The draft version of the West Lafayette Downtown Plan calls for future land use of this block to have a maximum building height of six stories. The proposed four-story building conforms to this future land use desire.

   Building Coverage: The proposed building decreases the number of beds, improves amenity spaces, and incorporates improvements to the infrastructure to align with modern building codes and accessibility requirements.

Form 21V

The Area Board of Zoning Appeals of Tippecanoe County, Indiana

Findings of Fact for Variances

Omega Chapter of Pi Kappa Phi

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apc@tippecanoe.in.gov

4. The strict application of the terms of the Unified Zoning Ordinance will result in an unusual and unnecessary hardship as defined in the Unified Zoning Ordinance because:

   Vegetative Coverage: The hardship is the lot size. The building's size and required number of parking spaces determine the amount of remaining green space on a property. If there is increased building coverage and on-site parking requirements, there will be less green space available as a result.

   Parking Spaces: The existing layout provides fewer parking spaces than the proposed 27 spaces shown on the new site plan. Requiring more parking than what is currently offered, for a building that will see a decrease in the number of beds, is the hardship.

5. The hardship involved is not self-imposed or based solely on a perceived reduction of or restriction on economic gain because:

   Vegetative Coverage: The hardship is ordinance imposed. As the building size increases and the number of vehicle and bicycle parking spaces are determined, the lot simply runs out of available space to meet each requirement.

   Parking Spaces: The hardship is not self-imposed; it is ordinance imposed. Requiring 0.75 parking spaces per occupant at capacity results in the need for more parking spaces than the site presently offers. The redeveloped building will have fewer residents compared to the number currently residing there.

6. The variance sought does provide only the minimum relief needed to alleviate the petitioner's hardship because:

   Vegetative Coverage: The green space has been placed at the front of the building along Grant Street.

   Parking Spaces: The minimum relief is the addition of parking spaces that were created with the new layout.

Form 21V

The Area Board of Zoning Appeals of Tippecanoe County, Indiana

Findings of Fact for Variances

Omega Chapter of Pi Kappa Phi

20 N. 3rd St.
Lafayette, IN 47901
(765) 423-9242
apc@tippecanoe.in.gov

4. The strict application of the terms of the Unified Zoning Ordinance will result in an unusual and unnecessary hardship as defined in the Unified Zoning Ordinance because:

   Front setback: The hardship is the lot size. Locating the building further to the east results in a loss of parking spaces. The lot does not provide enough space to meet each requirement.

   Rear setback: The hardship is the lot size. The lot does not provide enough space to meet each requirement.

5. The hardship involved is not self-imposed or based solely on a perceived reduction of or restriction on economic gain because:

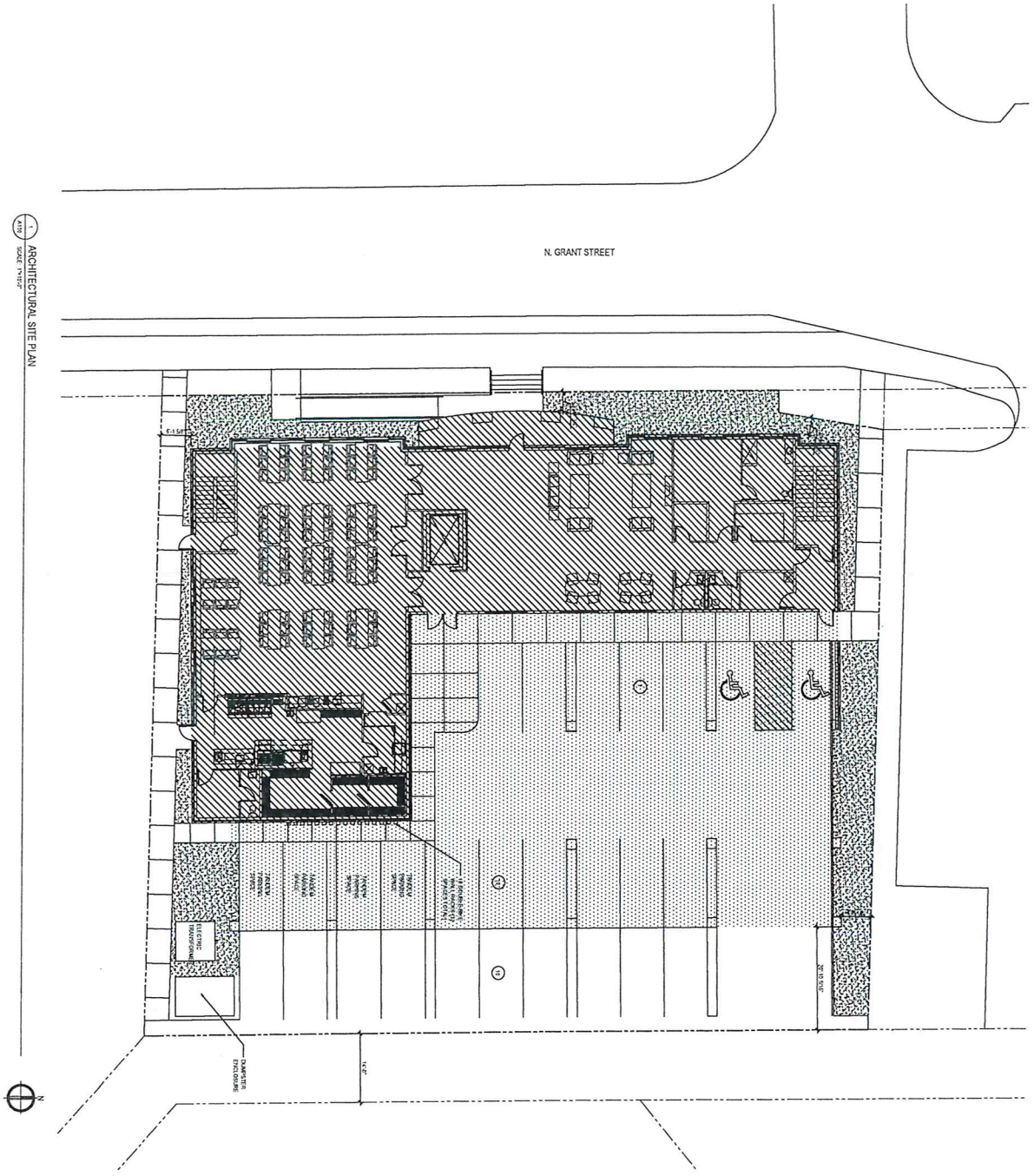
   Front setback: The hardship is ordinance imposed. As the building size increases and the number of vehicle and bicycle parking spaces are determined, the lot runs out of available space to meet each R3W requirement.

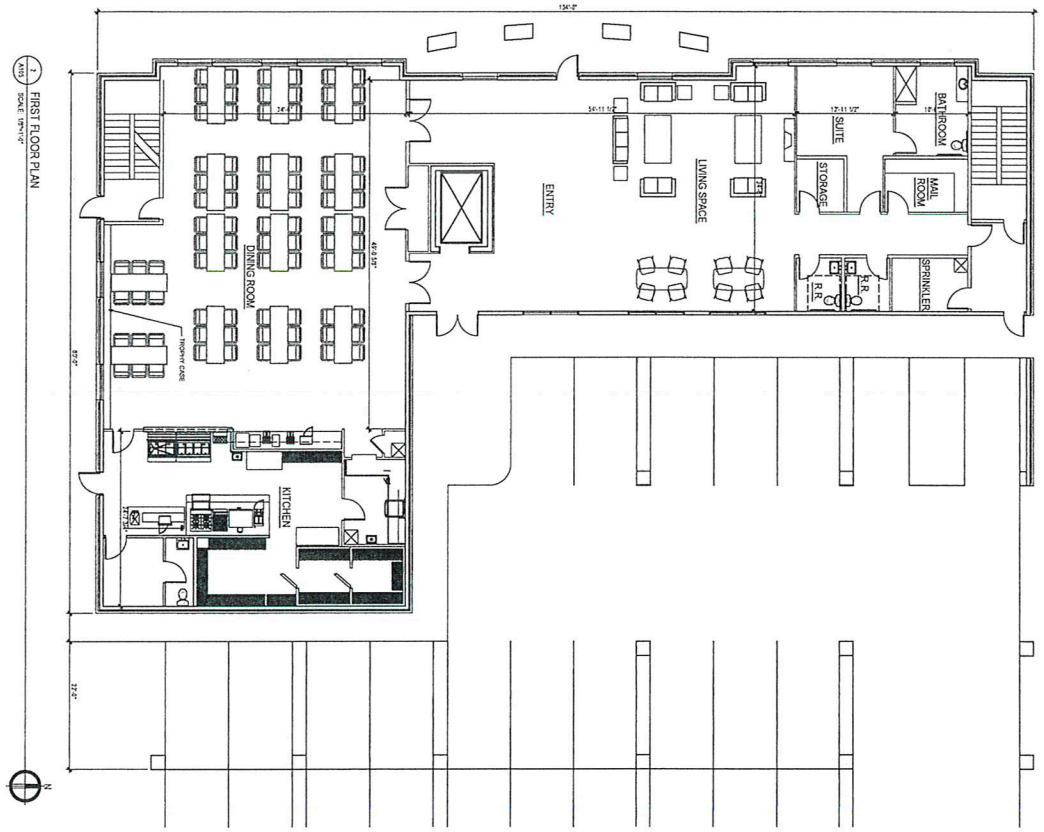
   Rear setback: The hardship is ordinance imposed. The lot does not provide enough space to meet every requirement of the R3W zoning district.

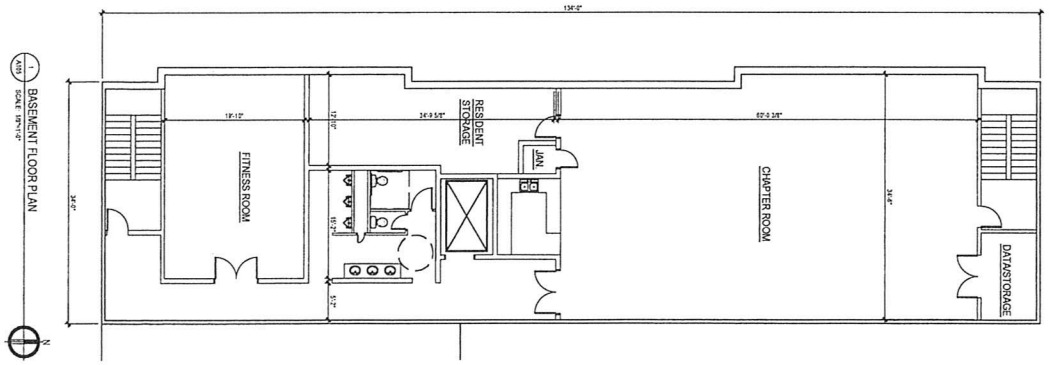
6. The variance sought does provide only the minimum relief needed to alleviate the petitioner's hardship because:

   Front setback: The proposed placement on the lot aligns with development standards that have been negotiated through the planned development stage of nearby apartments on Vine Street.

   Rear setback: The proposed placement on the lot aligns with development standards of recent near-campus planned developments. The building's placement will not affect alley related traffic.


N. GRANT STREET
ARCHITECTURAL SITE PLAN
SCALE: 1"=10'-0"
ELECTRIC TRANSFORMER
DUMPSTER ENCLOSURE
14'-0"
26'-10 5/8"
E-1 SAT
EXISTING PERIMETER WALL
EXISTING PARKING AREA
EXISTING PARKING AREA
EXISTING PARKING AREA





PROPOSED FLOOR PLANS

330 N. GRANT STREET

330 N. GRANT STREET
WEST LAFAYETTE, INDIANA 47906
WEST LAFAYETTE, INDIANA 47906
TIPPECANOE COUNTY

PROJECT DATE: 08.09.2022

PROJECT NUMBER: C2022.066

CHECKED BY:

SHEET NUMBER: A105

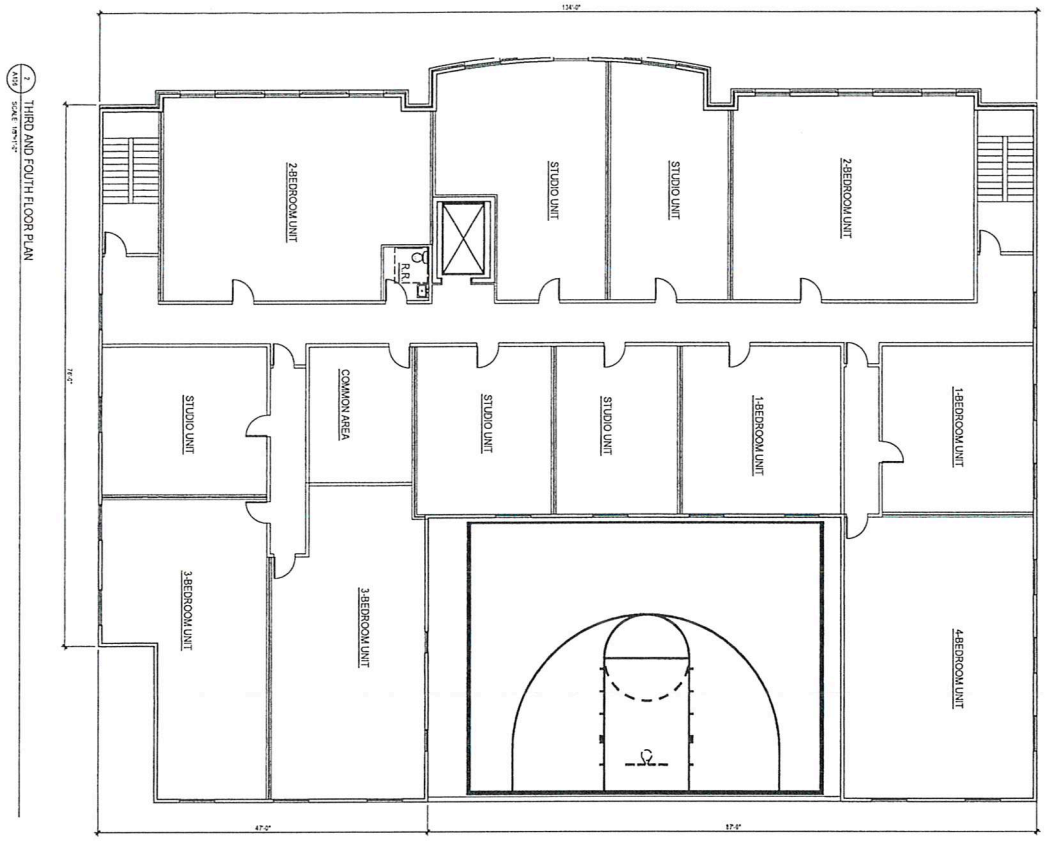
NO. DESCRIPTION DATE

SHEET REVISIONS:

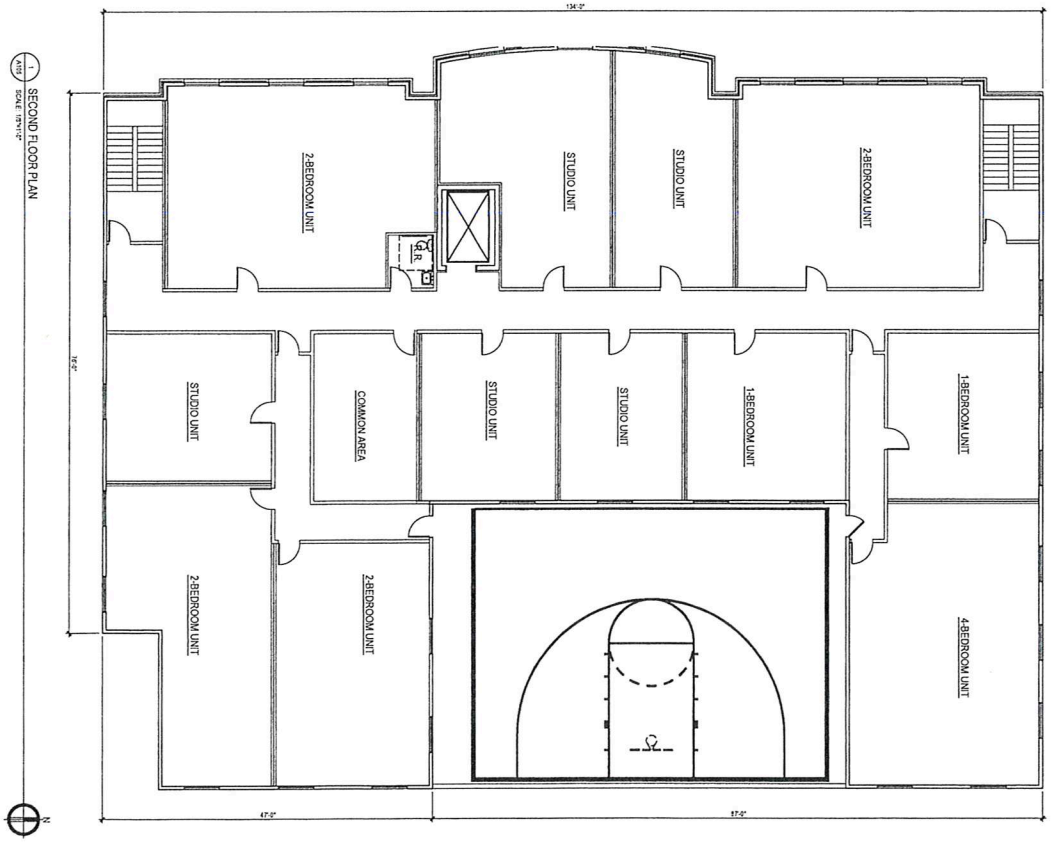
PROFESSIONAL SEAL:

DISCLAIMER:

KG ARCHITECTURE
KGD ARCHITECTURE, INC.
3131 S. RANGELINE ROAD, SUITE A
WEST LAFAYETTE, INDIANA 47906
www.kgdarchitecture.com
765.497.4320



3 A110 THIRD AND FOUTH FLOOR PLAN
SCALE: 1/8"=1'-0"



1 A110 SECOND FLOOR PLAN
SCALE: 1/8"=1'-0"

N

PROPOSED FLOOR PLANS

330 N. GRANT STREET

330 N. GRANT STREET
WEST LAFAYETTE, INDIANA 47909
WEST LAFAYETTE, INDIANA 47906
TIPPECANOE COUNTY

PROJECT DATE: 08.09.2022

NO. DESCRIPTION: DATE

PROJECT NUMBER: C2022.086

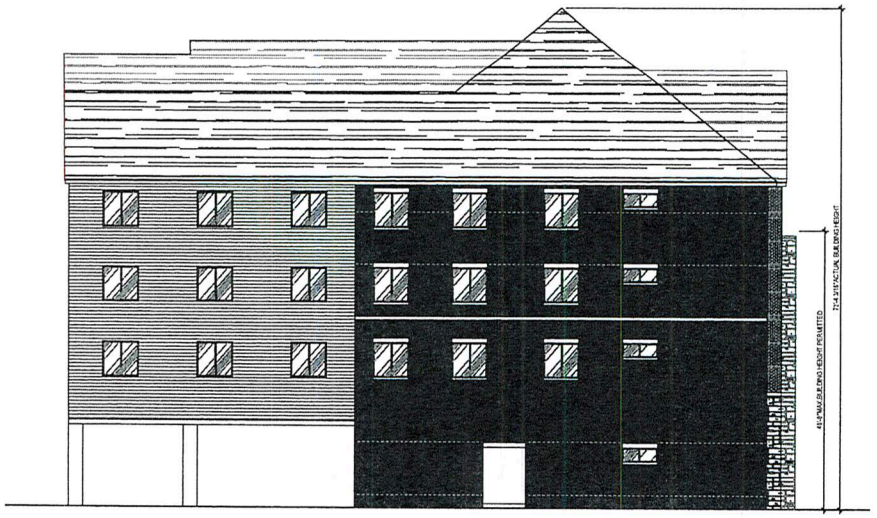
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SHEET NUMBER: A110

DISCLAIMER:

PROFESSIONAL SEAL:

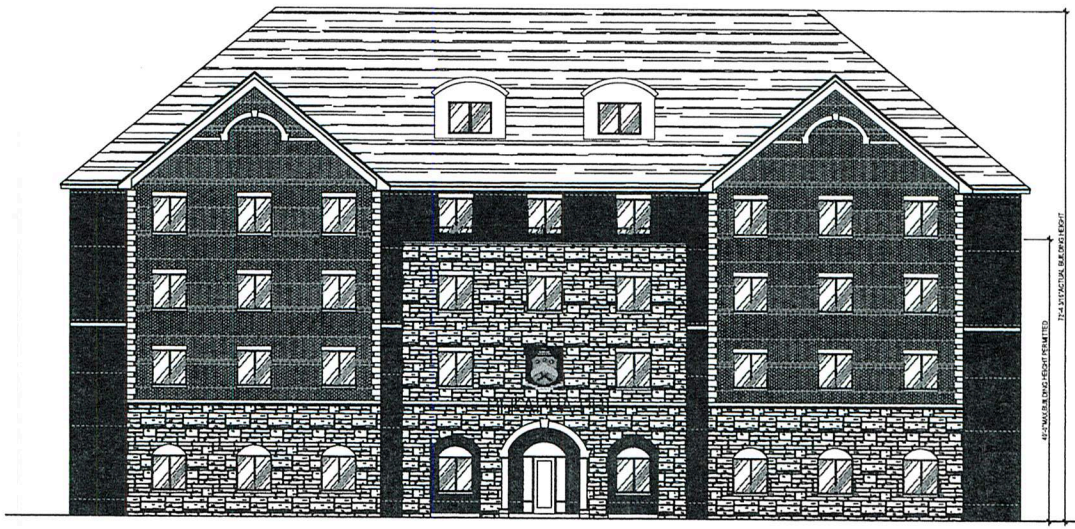
KG ARCHITECTURE
KG ARCHITECTURE, INC.
137 S. LOCUST STREET
WEST LAFAYETTE, INDIANA 47906
www.kgarchitecture.com
765.447.4105



3 A200 NORTH ELEVATION
SCALE: 1/8"=1'-0"



2 A200 SOUTH ELEVATION
SCALE: 1/8"=1'-0"



1 A200 WEST ELEVATION
SCALE: 1/8"=1'-0"

KJG ARCHITECTURE
KJG ARCHITECTURE, INC.
527 SAGAMORE PARKWAY WEST
WEST LAFAYETTE, INDIANA 47906
www.kjgarchitecture.com
765.447.4588

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EXTERIOR ELEVATIONS

330 N. GRANT STREET

330 N. GRANT STREET
WEST LAFAYETTE, INDIANA 47909
WEST LAFAYETTE, INDIANA 47906
TIPPECANOE COUNTY

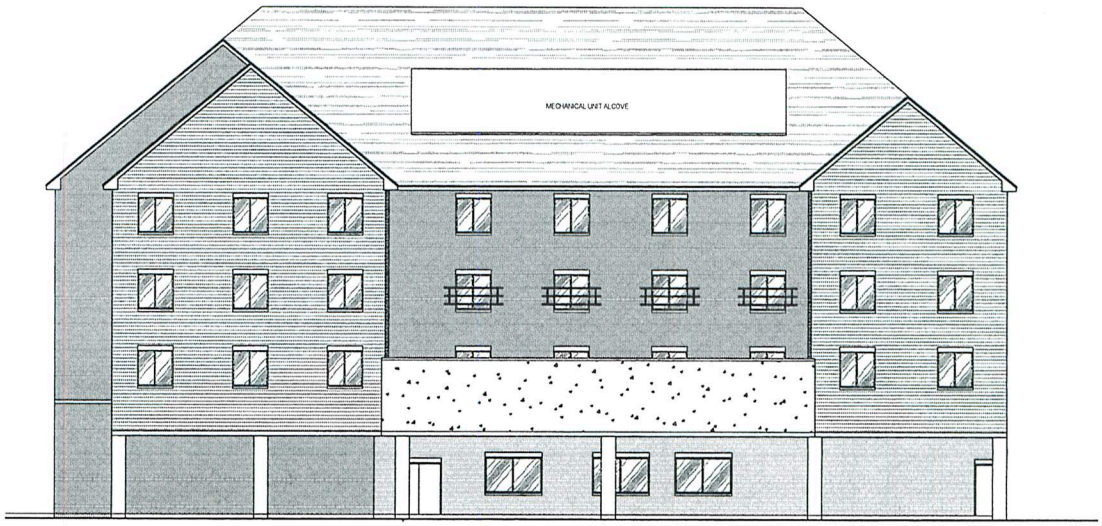
PROJECT DATE:
03.16.2026

SHEET REVISIONS:

NO.	DESCRIPTION	DATE

PROJECT NUMBER: C2022.086
CHECKED BY:

SHEET NUMBER:
A200



1 A201 EAST ELEVATION
SCALE: 1/8"=1'-0"

KJG ARCHITECTURE
KJG ARCHITECTURE, INC.
527 SAGAMORE PARKWAY WEST
WEST LAFAYETTE, INDIANA 47906
www.kjgarchitecture.com
765 497 4598

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PROPOSED FLOOR PLANS

330 N. GRANT STREET
330 N. GRANT STREET
WEST LAFAYETTE, INDIANA 47909
WEST LAFAYETTE, INDIANA 47906
TIPPECANOE COUNTY

PROJECT DATE:
08.09.2022

SHEET REVISIONS:

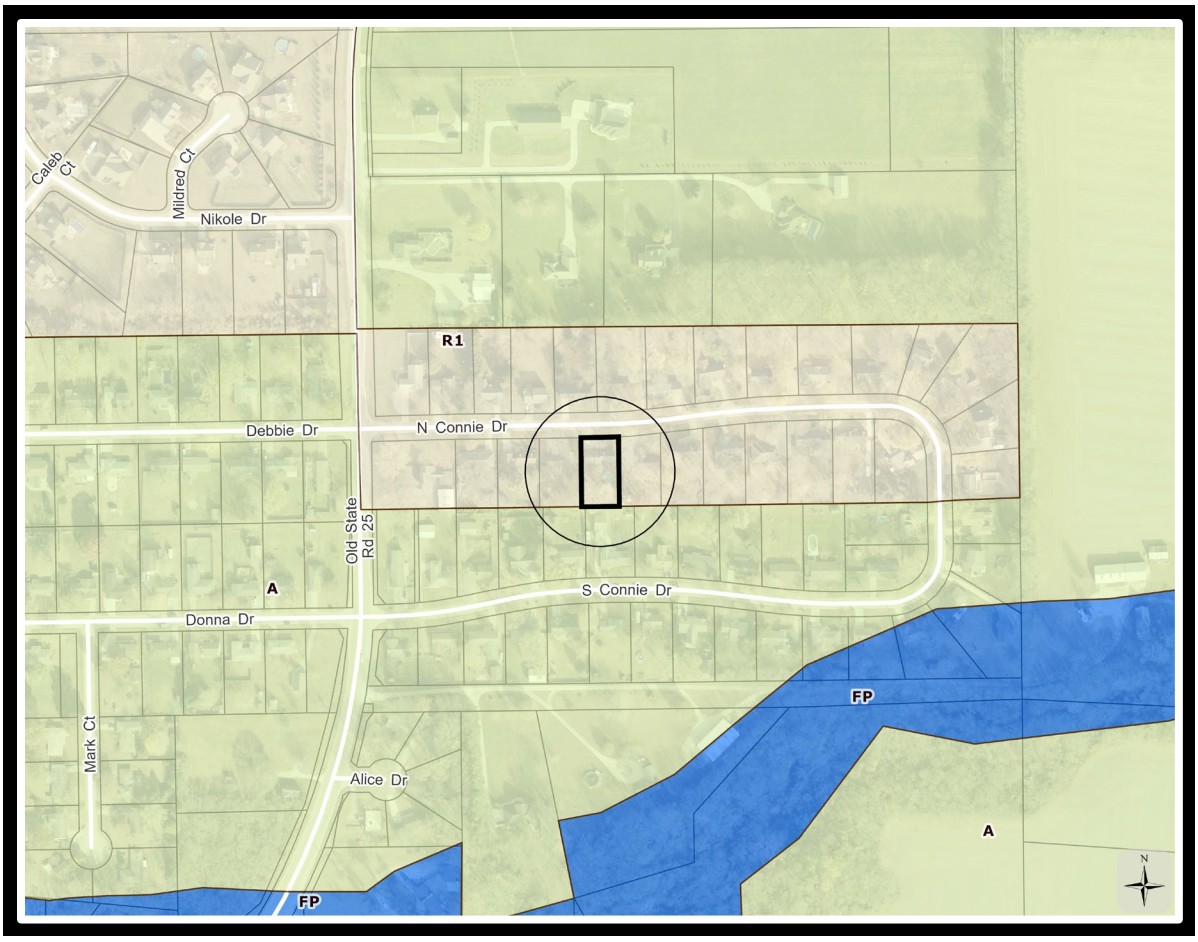
NO.	DESCRIPTION	DATE

PROJECT NUMBER: C2022.086
CHECKED BY:

SHEET NUMBER:
A201

BZA-2230
ROBERT DARNELL
(variances)

STAFF REPORT
May 21, 2026



BZA-2230
ROBERT DARNELL
Variances

Staff Report
May 21, 2026

REQUEST MADE, PROPOSED USE, LOCATION:
Petitioner and owner, represented by Casey Mast of Mast Services of Lafayette, LLC, requests the following two variances to allow construction of an attached front porch:

1. To allow a reduction in the front setback from the required 25' to 23' (UZO 2-1-7); and
2. To allow a side setback (east side) of 2' instead of the required 6' to legitimize the existing house (the proposed porch side setback would be 5.19')(UZO 2-1-9).

The R1-zoned property is located at Lot 34 of Lake Road subdivision, Part 2, commonly known as 3717 N. Connie Drive, Fairfield 02 (NW) 23-4.

AREA ZONING PATTERNS:
The site is located within an R1-zoned neighborhood. The lot is in Lake Road Subdivision, Part 2, which was platted in 1980; R1 (single-family residential, low density) has existed here since 1978. The adjacent subdivision to the west, Northbrook, is zoned A (Agricultural), and Lilly May Estates to the northwest is zoned R1. There have been no recent BZA cases or rezones in the area.

AREA LAND USE PATTERNS:
The site contains a one and a half story single-family home with a two-car garage that was built in 1985. Northbrook subdivision to the west across Old State Road 25 was developed in the mid/late 1960s. The low-density residential area to the north of the two subdivisions was developed primarily between 2000-2015.

TRAFFIC AND TRANSPORTATION:
Connie Drive is classified as a local road by the adopted *Thoroughfare Plan*. The home is accessed by a private driveway. The site currently has the required two parking spaces on site.

ENVIRONMENTAL AND UTILITY CONSIDERATIONS:
A private septic system and well serve the site.

STAFF COMMENTS:
The 2658 sq. ft. home was built in 1985 according to the County Assessor's data. The proposed site plan shows two additions to the existing home. Petitioners are requesting two variances, the first variance for a front setback of 23' and the second variance for a side setback of 2' to construct a porch addition onto the front of their home. The side setback

variance would also bring the existing structure, currently sitting 2' from the west property line, into conformance. Based on the submitted site plan, the maximum lot coverage and minimum vegetative coverage will be met. The petitioner will need to work with the Health Department to make sure the new structure will meet the requirements of the existing septic. If the new porch was not roofed, variances would not be needed because the ordinance permits unroofed stoops to extend up to 4 feet into a front setback (UZ) 4-4-5(c)). While staff can empathize with petitioners' desire to have additional space, the requests do not meet the tests required to make a favorable recommendation.

Regarding the ballot items:

1. The Area Plan Commission May 20, 2026 meeting determined that the variance requested **ARE NOT** use variances.

And it is staff's opinion that:

2. Granting this variance **WILL NOT** be injurious to the public health, safety, and general welfare of the community. The proposed porch addition will not hinder visibility for pedestrians or drivers, ensuring that traffic and neighborhood safety remain unaffected.

3. Use and value of the area adjacent to the property included in the variance request **WILL NOT** be affected in a substantially adverse manner. The homeowners plan to have the new porch blend with the existing character of the neighborhood and will not create any obstructions or nuisances for neighboring properties.

2. The terms of the zoning ordinance are being applied to a situation that **IS** common to other properties in the same zoning district. There is nothing unusual with this residential lot in regard to its shape, size or topography. Numerous properties in the R1 zone have similar layouts.

4. Strict application of the terms of the zoning ordinance **WILL NOT** result in an unusual or unnecessary hardship as defined in the zoning ordinance. The proposed addition is not necessary for petitioner to use this property as a single-family dwelling. While adding on to an existing home may pose practical difficulties in meeting the ordinance requirements, the test is finding an ordinance-defined hardship.

   Note: Questions 5a. and 5b. need only be answered if a hardship is found in Question 5 above.

   5a. The hardship involved **IS** self-imposed or solely based on a perceived reduction of or restriction on economic gain. Petitioners' desire to construct a porch is causing the difficulty, not the zoning ordinance.

   5b. The variance sought **DOES NOT** provide only the minimum relief needed to alleviate the hardship. Because there is no hardship, no relief could be found.

STAFF RECOMMENDATION:
Variance #1: Denial
Variance #2: Denial

Form **21V**

The Area Board of Zoning Appeals of Tippecanoe County, Indiana

Findings of Fact for Variances

20 N. 3rd St.
Lafayette, IN 47901
(765) 423-9242
apc@tippecanoe.in.gov

BZA - 2230

PETITIONER

Name: *Casey Mast/ Mast Services of Lafayette, LLC.*

FINDINGS

WHEN considering a variance request, the Area Board of Zoning Appeals (ABZA) uses the following criteria to approve, conditionally approve, or deny a variance, and the petitioner must address each one of them. (This form may be completed separately for each requested variance if necessary.) A variance may be approved by the ABZA only upon a determination that all of the following are true:

1. The granting of this variance will not be injurious to the public health, safety, morals, and general welfare of the community because:

   Variance 1 and 2
   Enhanced Safety: The Installation of an 8ft by 39ft 7inch wide Porch on the front of the home will provide a protected seating area on the front of the home. It will be a clear boundary between the sidewalk and front of the home. The side setback will bring in the porch and the house into the current UZO.

   Privacy and Security: The Porch will offer increased privacy and security to the property, which can deter potential criminal activities and provide peace of mind for residents.

   Non-Obstructive Design: The Porch will be constructed in a manner that does not obstruct visibility for drivers or pedestrians, ensuring that it does not pose any hazards to the public safety.

2. The use and value of the area adjacent to the property included in the variance request will not be affected in a substantially adverse manner because:

   A well-maintained porch can enhance property values and the attractiveness of the area.

3. The terms of the Unified Zoning Ordinance are being applied to a situation that is not common to other properties in the same zoning district. My (our) situation is unique because:
   This porch allows homeowner to add addition seating space on the front of our home. Currently the space is occupied by shrubs and a small concrete porch pad, with no seating area.

Form 21V

The Area Board of Zoning Appeals of Tippecanoe County, Indiana

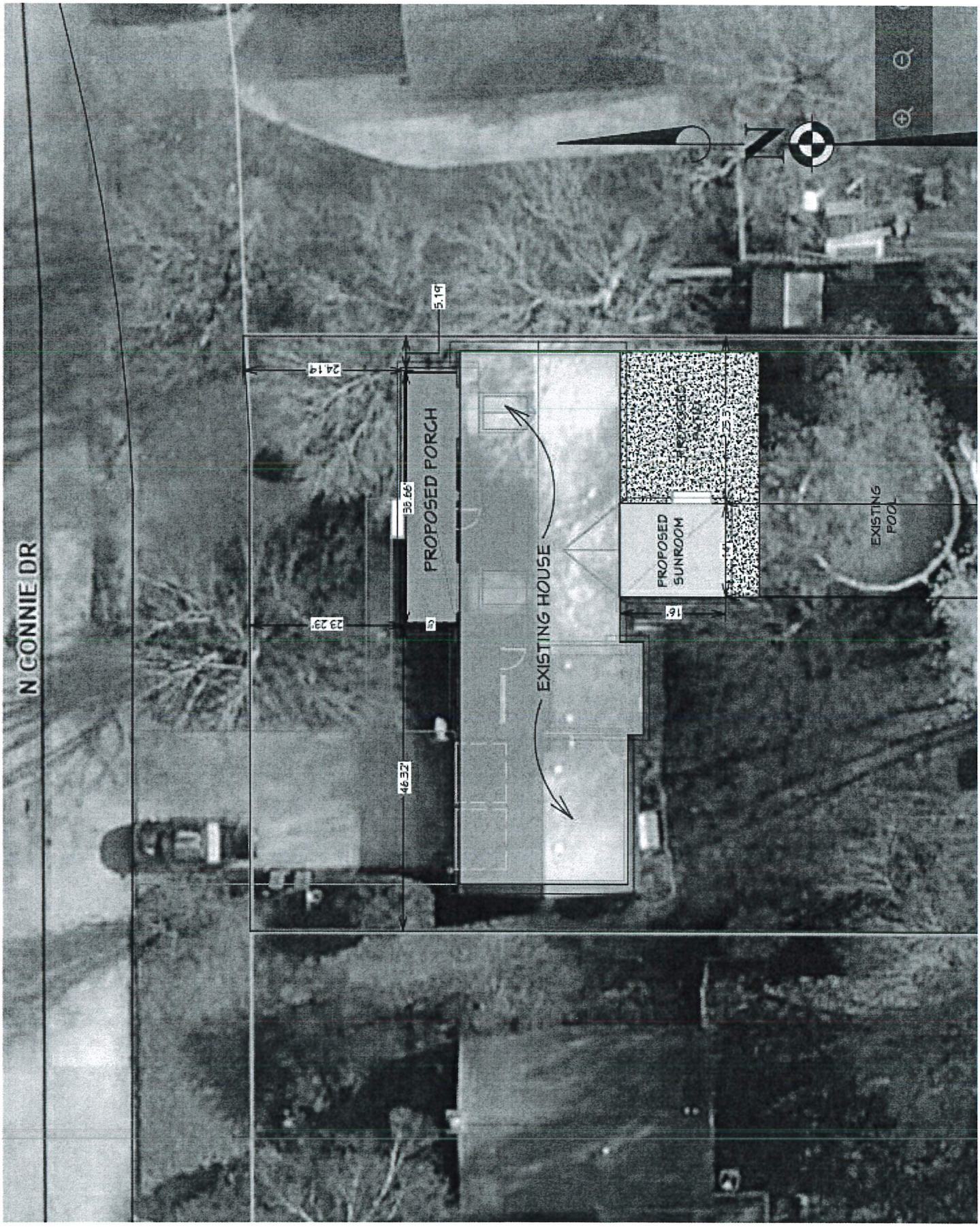
Findings of Fact for Variances

20 N. 3rd St.
Lafayette, IN 47901
(765) 423-9242
apc@tippecanoe.in.gov

4. The strict application of the terms of the Unified Zoning Ordinance will result in an unusual and unnecessary hardship as defined in the Unified Zoning Ordinance because:
   Installing a porch with a 23ft setback would reduce the usable front yard space by approximately one-third, yet increasing usable covered seating are by one-fourth. Installing a porch with a setback of 5.19 side setback would reduce the usable side yard space by approximately one-tenth, yet increasing usable covered seating area by one-fourth.

5. The hardship involved is not self-imposed or based solely on a perceived reduction of or restriction on economic gain because:
   This porch will add property value to the home as well as updating the ascetics of the neighterhood.

6. The variance sought does provide only the minimum relief needed to alleviate the petitioner's hardship because:
   We are only requesting what is need to complete the project and give the home more curb appeal.


N CONNIE DR
PROPOSED PORCH
EXISTING HOUSE
PROPOSED SUNROOM
EXISTING POOL
24.14'
23.23'
46.32'
5.19'
35.66'
16'
25.3'
N